

		Here, the proposed Cross-Complaint asserts causes of action for 1) implied indemnity and total indemnity and 2) declaratory relief and apportionment of fault. The Complaint alleges Defendant made repairs to a water line and negligently cause a significant leak of water onto Plaintiff's property, causing structural and other damage. The proposed Cross-Complaint alleges that Cross-Defendant Robert Pillon made repairs to the water line and may have been negligent, contributing to Plaintiff's own damages. Accordingly, the proposed Cross-Complaint is compulsory. However, even if the cross-complaint were permissive, the court would grant leave to amend doing so will not interfere with a trial date or unduly prejudice any other parties to this action. Plaintiff's opposition requests that the court to bifurcate the trial of the Cross-Complaint from the trial of the Complaint. This request is not properly before the court although Plaintiff may move separately for bifurcation if he wishes to do so. Defendant shall give notice of this ruling.
11	Cliq, Inc. vs. Capital Managers, LLC 30-2021-01220754	<u>Motions for Attorney's Fees and to Strike and/or Tax Costs</u> There is no full written tentative ruling at this time. The court will hear from the parties or their counsel, who shall be ready to address whether the court should refer the motions for attorney's fees and to strike and/or tax costs to a referee pursuant to Civil Procedure Code section 639. <u>Motion to Amend Judgment</u> Plaintiff Cardflex, Inc. d/b/a Cliq's Motion to Amend Judgment for Civil Code § 3287(b) Discretionary Interest is DENIED as moot. The motion is moot in light of the court's ruling denying discretionary prejudgment interest pursuant to Civil Code section 3287(b).